EXECUTIVE ORDER

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE.

DEC 9 1925

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of Two Hundred Seventy-eight Thousand ($278,000.00) Dollars, an undivided four-fifths interest in certain real estate now being held and administered by him as such Alien Property Custodian, and heretofore, upon requirement, conveyed, transferred, assigned and delivered to him as the property of Adolph Nussbaum, Friederica Nussbaum, Ernst Nussbaum and Clara Nussbaum, residing in

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Germany, whom, after investigation, he did determine to be enemies within the purview of said Act as amended, which said real estate is situate in the City and County of San Francisco, State of California, and described as follows: to-wit:

Portion of Outside Land Block No. 228 bounded by Point Lobos, 47th and 48th Avenues and Clement Street, known as Assessor's Block No. 1479.

Portion of Outside Land Block No. 228 bounded by Point Lobos, 47th and 48th Avenues and Geary Street, known as Assessor's Block No. 1488.

Portion of Outside Land Block 239, 240 by 375 feet bounded by 47th and 48th Avenues and Geary Street in Assessor's Block No. 1487.

Portion of Outside Land Block No. 227, bounded by Point Lobos, 46th and 47th Avenues and Clement Street, known as Assessor's Block No. 1476.

Portion of Outside Land Block No. 227, bounded by Point Lobos, 46th and 47th Avenues and Geary Street, known as Assessor's Block No. 1486.

Outside Lands Block No. 230, bounded by 46th and 47th Avenues, Anza and Geary Streets, and known as Assessor's Block No. 1498.

Portion of Outside Land Block No. 226, bounded by Point Lobos, 46th and 48th Avenues and Clement Street, known as Assessor's Block No. 1477.

Lot No. 10, Block 226, Outside Lands, in Assessor's Block No. 1476.

Lot No. 12, Block 224, Outside Lands, in Assessor's Block No. 1478.

Irregular shaped lot fronting 44 feet on the north line of Point Lobos Avenue, in Assessor's Block No. 1478.

Portion of Outside Land Block No. 222, fronting on the North line of Point

Lobos Avenue between 41st and 42nd Avenues, in Assessor's Block No. 1473.

Portion of Outside Land Block No. 221, fronting 240 feet on the south line of Clement Street, in Assessor's Block No. 1472.

Outside Lands Block No. 720½ in Assessor's Block No. 1804.

Lot No. 2, Block 721 Outside Lands, in Assessor's Block No. 1805.

Lot in Assessor's Block No. 6956, being the Southeast corner thereof, fronting 100 feet on Paxon Avenue and 100 feet on Granton Avenue.

Lot No. 41 in Block "R" of Park Lane Tract, in Assessor's Block No. 2027, less a ten foot strip on Lower Terrace, conveyed by deed to the City of San Francisco, Nov. 6, 1924.

Lots No. 47 and 48 in Block "R", Park Lane Tract, in Assessor's Block No. 2049.

Lot fronting on Parnassus Avenue 422.50 feet, irregular, containing 1.117 acres, in Assessor's Block No. [illegible]

My reason for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of said real estate has been received by the Alien Property Custodian.

(b) An attempted sale at public auction would be a useless formality and would involve unnecessary expenses, delay and inconvenience, which should be avoided.

(c) The alien enemies have given their assent that this offer be accepted and the property sold.

(d) Property is vacant and non-income producing, and is subjected to heavy taxation.

(e) Sale would facilitate the settlement of the estate in a manner satisfactory to all parties in interest.

The White House,

December 9, 1942.